

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L324R0018

[X] ORIGINAL

[] ADDENDUM (attach copy of original J&A for add-ons or revisions)

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies on other than a full and open competition basis.
3. The supplies required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN	QUANTITY	EST. VALUE	AMC/AMSC
BARREL SET,30 MM	1005-01-142-8146	37 SE		3/C

- Estimated Base Value: \$
 - Estimated Max Value: \$
 - Identify end item, weapon system, or class of item: This item is a 7 barrel set for the GAU-8 30mm rotary cannon used on the 24F AIRCRAFT, THUNDERBOLT II, A-10 manufactured by GENERAL DYNAMICS-OTS, INC. 05606 P/N 512L735. The F-15 and F-16 aircraft listed in the Product Master carried an externally mounted GPU-5 gun pod. Use of the GPU-5 by the Air Force was discontinued in the early 1990s.
 - IAW DFARS PGI 6.3, the previous J&A must be attached (See Attachment 1).
4. The statutory authority permitting other than full and open competition is: [X] 10 USC 3204(a)(1) - Available from only one or a limited number of sources.
 5. If restricted to the only source(s) of supply, include source(s) and CAGE code: GENERAL DYNAMICS-OTS, INC. 05606 P/N 512L735

The use of the authority cited below:

[X] AMC 3. Acquire, for the second or subsequent time, directly from the actual manufacturer.

The use of the authority cited is based on:

[X] AMSC C. This part requires engineering source approval by the design control activity in order to maintain the quality of the part. Existing unique design capability, engineering skills, and manufacturing knowledge by the qualified source(s) require acquisition of the part from the approved source(s). The approved source(s) retain data rights, manufacturing knowledge, or technical data that are not economically available to the Government, and the data or knowledge is essential to maintaining the quality of the part. An alternate source must qualify in accordance with the design control activity's procedures, as approved by the cognizant Government engineering activity. The qualification procedures must be approved by the Government engineering activity having jurisdiction over the part in the intended application. If one source is approved, AMCs 3, 4, or 5 are valid. If at least two sources are approved or if data is adequate for an alternate source to qualify in accordance with the design control activity's procedures, AMCs 1 or 2 are valid.

On 05/01/2024 the buyer received confirmation from the product specialist that the AMC/AMSC of 3/C is accurate. The approved source is GENERAL DYNAMICS-OTS, INC. 05606 P/N 512L735. Per the Product Specialist,

Controlled by: DLA Land and Maritime
Controlled by: FL
CUI Category: PROCURE

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Limited Distribution Control: FED ONLY

POC: jon.mitchell@dla.mil

this is the only known source that possesses the technical data for the manufacturing of this item, thus, demonstrating that GENERAL DYNAMICS-OTS, INC. 05606 has the unique design capability, engineering skills, and manufacturing knowledge for this NSN. Product Specialist certified the above information is correct as of 05/01/2024 (See Attachment 2).

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

- The acquisition will be synopsisized on or about 05/01/2024 for 15 days on SAM.gov and will be on the DLA Internet Bid Board (DIBBS) for 30 days.

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.

- The most recent buy for this NSN was on 03/29/2024. PO# SPE7L424C0004 was awarded to GENERAL DYNAMICS-OTS, INC. 05606 for 124 SE at \$40,000.00 each. The contract action was coded BG. **B** Contracting officer analysis. **G** Comparison to historical prices paid, whether by the Government or other than the Government, for same or similar items and prior price is a valid basis for comparison as supported by prior file documents (FAR 13.106-3(a)(2)(ii), FAR 15.404-1(b)(2)(ii), DFARS PGI 215.403-3(4) and PGI 215.404-1(b)(iii)(A)).
- This is a DLA direct item. The estimated price of the solicited maximum quantity of 37 SE is expected exceed \$750,000. If the contract value exceeds \$750,000.00, a subcontracting plan will be required.
- In order to determine the cost as fair and reasonable, Price Analysis will be calculated using past procurement history, a Learning Curve and PPI. If additional analysis is needed for the fair and reasonable determination, support will be sought from the Pricing Office.
- Negotiation procedures may be used pending price analysis results and competition.
- Length of contract: This solicitation is for a firm-fixed price, definite quantity contract. The length of the contract will be determined by the awarded delivery. Delivery is estimated at days, which is based on market research.
- Quantity: 37 SE.

8. Market Research/Efforts to Obtain Competition:

- Market Survey [10USC 3204 (e)(2)(D)]:
- Market Survey was sent to the sole manufacturer of this material, GENERAL DYNAMICS-OTS, INC. 05606 for completion of the market survey. The market survey was sent to only one manufacturer due to this item only being available from the sole approved source of supply. No history of any dealers submitting proposals in the past were found. GENERAL DYNAMICS-OTS, INC. 05606 has supplied this item in the past. Records Management was reviewed for any other possible sources. A Sources Sought was posted on 04/24/2024 and closed on 05/01/2024. No responses to the Sources Sought were received.
- Total number of vendors contacted: 1
 - Names of vendors contacted and responding: GENERAL DYNAMICS-OTS, INC. 05606 responded.
 - Techniques used to conduct survey: The market survey was sent via email.
- Types of information requested:
 - Information requested included: business size, commerciality, preference for submissions of offers through distributors/dealers or directly to the government, source of supply, catalogue price, is the item in inventory, willingness to quote the item, economical production quantities, their price break ranges, delivery, and if they are registered in SAM.

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- Summary of information received:
 - GENERAL DYNAMICS-OTS, INC. 05606 responded that they intended to quote this requirement.
 - GD-OTS is a large business.
 - This item is not commercial.
- Information received regarding the commerciality of the item(s):
 - The COTS field in SRM is blank. Market research did not yield any readily available published catalog price lists, schedules or other form of commercial pricing that are regularly maintained and updated by a manufacturer or vendor that are available to the general public for inspection nor is there evidence of sale prices at which sales were made to a significant number of buyers constituting the general public. Therefore, the Contracting Officer determines this item to be non-commercial and the solicitation shall be issued pursuant to FAR Part 15 procedures. Synopsis will state that based upon market research, the Government is not using the policies contained in FAR Part 12. However, interested persons may identify to the contracting officer their interest and capability to satisfy the Government's requirement with a commercial item within 15 days of this notice.
- Procurement History:

Smart Number (PIIN)	Source	CAGE	Vendor Name	Quan	Unit	Price	Award Date	PRC
SPE7L424C0004	A	05606	GENERAL DYNAMICS-OTS, INC.	124	SE	\$40,000.00	3/29/2024	BG
SPE7L323P4768P00001	A	05606	GENERAL DYNAMICS-OTS, INC.	19	SE	\$35,558.16	6/15/2023	BG
SPE7L123P0560	A	05606	GENERAL DYNAMICS-OTS, INC.	5	SE	\$37,848.33	10/20/2022	BG
SPE7LX22F9566	A	05606	GENERAL DYNAMICS-OTS, INC.	12	SE	\$31,934.22	12/15/2021	PF
SPE7LX22F8598	A	05606	GENERAL DYNAMICS-OTS, INC.	17	SE	\$31,934.22	12/8/2021	PF
SPE7LX22F6008	A	05606	GENERAL DYNAMICS-OTS, INC.	23	SE	\$30,920.60	11/16/2021	PF
SPE7LX21F129D	A	05606	GENERAL DYNAMICS-OTS, INC.	10	SE	\$30,837.95	2/8/2021	PF
SPE7L120F3272P00001	A	05606	GENERAL DYNAMICS-OTS, INC.	26	SE	\$29,694.85	11/4/2019	PF
SPE7L120F1081P00001	A	05606	GENERAL DYNAMICS-OTS, INC.	17	SE	\$30,671.61	10/11/2019	PF
SPE7L119F46J5P00002	A	05606	GENERAL DYNAMICS-OTS, INC.	12	SE	\$30,671.61	9/24/2019	PF
SPE7L119F45N6P00002	A	05606	GENERAL DYNAMICS-OTS, INC.	15	SE	\$30,671.61	9/23/2019	PF
SPE7L119F37A2P00001	A	05606	GENERAL DYNAMICS-OTS, INC.	15	SE	\$30,671.61	9/9/2019	PF
SPE7L119F12K9P00001	A	05606	GENERAL DYNAMICS-OTS, INC.	29	SE	\$29,694.85	7/16/2019	PF
SPM7LX08D90010402	A	05606	GENERAL DYNAMICS-OTS, INC.	13	SE	\$32,954.75	7/9/2018	
SPE7L118F180CP00005	A	05606	GENERAL DYNAMICS-OTS, INC.	99	SE	\$37,341.74	12/15/2017	CF
SPE7L118F072LP00003	A	05606	GENERAL DYNAMICS-OTS, INC.	32	SE	\$37,341.74	12/7/2017	CF
SPM7LX13D0048001207	A	05606	GENERAL DYNAMICS-OTS, INC.	240	SE	\$31,334.09	7/2/2013	XX
SPM7LX13D0048001001	A	05606	GENERAL DYNAMICS-OTS, INC.	25	SE	\$31,334.09	5/21/2013	XX
SPM7LX13D00480002	A	05606	GENERAL DYNAMICS-OTS, INC.	12	SE	\$32,568.48	5/17/2013	XX
SPM7LX13D00480003	A	05606	GENERAL DYNAMICS-OTS, INC.	21	SE	\$31,334.09	5/17/2013	XX
SPM7LX13D0048000805	A	05606	GENERAL DYNAMICS-OTS, INC.	140	SE	\$31,334.09	5/17/2013	XX
SPM7L413M0357P00002	A	05606	GENERAL DYNAMICS-OTS, INC.	7	SE	\$41,813.00	2/19/2013	BI
SPM7LX08D90010411	A	05606	GENERAL DYNAMICS-OTS, INC.	30	SE	\$32,953.65	12/20/2011	
SPM7LX08D90010402	A	05606	GENERAL DYNAMICS-OTS, INC.	15	SE	\$32,954.75	11/28/2011	
SPM7LX08D9001030902	A	05606	GENERAL DYNAMICS-OTS, INC.	30	SE	\$32,953.65	4/27/2011	
SPM7LX08D9001025301	A	05606	GENERAL DYNAMICS-OTS, INC.	60	SE	\$31,738.91	10/29/2010	
SPM7LX08D9001003701	A	05606	GENERAL DYNAMICS-OTS, INC.	50	SE	\$32,634.39	9/11/2008	
SPM7LX08D9001003501	A	05606	GENERAL DYNAMICS-OTS, INC.	80	SE	\$32,634.39	9/10/2008	
SPM7LX08D9001003302	A	05606	GENERAL DYNAMICS-OTS, INC.	114	SE	\$32,634.39	8/29/2008	
SPM7LX08D9001003201	A	05606	GENERAL DYNAMICS-OTS, INC.	12	SE	\$32,634.39	8/28/2008	
SPM7L408C0056P00003	A	05606	GENERAL DYNAMICS-OTS, INC.	79	SE	\$32,769.20	3/21/2008	BG

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9. Additional facts supporting other than full and open competition are:

[X] Based upon the technical certification on file in DLA Land and Maritime – VEP technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is: GENERAL DYNAMICS-OTS, INC. 05606

11. The following actions are being taken to identify additional sources:

This solicitation will contain Conditions for Evaluation and Acceptance of Offers for Part Numbered Items, Procurement note L04, Offers for Part Numbered Items, and M06, Evaluation of Offers for Part Numbered Items.

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief.

MITCHELL.JON.F.10
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Date: 2024.05.06 09:40:39 -04'00'

5/6/24

Jon Mitchell, Contracting Officer

Date

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Date: 2024.05.07 15:27:17 -04'00'

5/6/24

Competition Advocate Signature

Date

APPROVAL REQUIREMENTS

- [] Up to \$750,000 Contracting Officer
- [X] \$750,000 to \$15,000,000 Competition Advocate

ATTACHMENT:

Attachment 1: SPE7L323R0022 J&A

Attachment 2: Product Specialist Certification